

HAM, ET AL. VS. FCA US, LLC, ET AL.

CASE NUMBER: 24CV-0206529

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on June 17, 2026 to Plaintiffs Taryn Ham and Ryan Ham and Counsel Strategic Legal Practices, APC for failure to appear on June 15, 2026 as ordered on February 6, 2026 and failure to provide the Court with an explanation regarding status of discovery as to the Motion for Summary Judgment. Defendant FCA US, LLC's Motion for Summary Judgment was on calendar for hearing on January 26, 2026 and Plaintiffs sought a continuance pursuant to CCP § 437c(h), which was granted. On February 9, 2026, Plaintiffs' counsel was at the hearing when the June 15, 2026 date was selected for hearing on the Motion for Summary Judgment. Plaintiffs did not file an Amended Opposition, did not provide the Court an update regarding discovery, and did not appear at the hearing. Plaintiffs filed a written response to the order to show cause which provides an explanation for the nonappearance. Based on this explanation, the Court discharges the order to show cause re: sanctions and will not impose any monetary sanctions.

JACKSON VS. COLLINS, ET AL.

CASE NUMBER: 24CV-0206492

Tentative Ruling on Motion for Leave to File First Amended Cross Complaint: Cross-Complainant Jeremiah Jese Brooke moves for an order granting leave to file a First Amended Cross Complaint to: 1) include information about the Litigation Guarantee in this action and to reference and/or specifically name lienholders as cross-defendants; 2) add James Collins, deceased, through his Estate or Personal Representative as a cross-defendant; 3) specify unknown cross-defendants as those with interests adverse to Cross-Complainant Jeremiah Jese Brooke.

Neither the original Motion, nor the Declaration of Elizondo Re: Correction and Substitution of Exhibit were timely noticed for today's hearing date. Service by US Mail only adds 5 calendar days to service deadlines. CCP § 1005. The Motion will either be denied or continued to a future hearing date at counsel's request. The Court also notes that Cross-Complainant prematurely filed the Amended Cross-Complaint on July 2, 2026 without leave of Court. The clerk is directed to strike the July 2, 2026 Amended-Cross Complaint.

MCCLOSKEY VS. CITY OF REDDING, ET AL.

CASE NUMBER: 25CV-0209479

Tentative Ruling on Motion for Leave to File Supplemental Verified Petition for Writ of Mandate: Petitioner, Allen McCloskey, seeks leave to file a Supplemental Verified Petition pursuant to CCP § 473(a)(1) and 464 to add a separate California Public Records Act (CPRA) request submitted on December 23, 2025, and facts pertaining to a fire which occurred on June 12, 2026. Respondents oppose the motion.

CCP § 473(a)(1). "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code." CCP § 473(a)(1).

Petitioner does not seek to add or strike the name of a party, correct a mistake in the name of a party, or correct a mistake in any other regard. CCP § 473(a)(1) also allows the court to grant a party leave to amend any pleading in other particulars "absent a showing of prejudice to the adverse party." *Board of Trustees v. Superior Court* (2007) 149 Cal.App.4th 1154. Here, the December and November CPRA requests are two distinctly separate records request. The incorporation of the December CPRA request is prejudicial because the original Petition has already been briefed and it confuses the issues of each separate request.

Additionally, the motion is also procedurally defective. A motion under CCP § 473(a)(1) must comply with the